

BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA

STATE OF OKLAHOMA, ex re.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE
Petitioner,

vs.

VALERIE SCARBERRY,
LPC, LICENSE NO. 5058
Respondent.

Complaint No. 2023-LPC-270



**ORDER OF REVOCATION OF
PROFESSIONAL COUNSELOR LICENSE**

This matter came on for hearing before the State Board of Behavioral Health Licensure ("the Board") on December 8, 2023, at Oklahoma Office of Attorney General, 313 N.E. 21st Street, Susan Loving – CR 1008, Oklahoma City, Oklahoma, pursuant to notice given as required by law and rules of the Board.

Liz Stevens, Assistant Attorney General, appeared on behalf of Petitioner. Respondent appeared in person and through counsel, Allan Grubb. Ms. Stevens for Petitioner and Mr. Grubb for Respondent are hereinafter referred to as the Parties.

The following exhibits were admitted into evidence.

- Petitioner's Exhibit 1: Information, filed October 21, 2022 (certified copy) *State of Oklahoma v. Valerie Scarberry* In the District Court of Cleveland County, State of Oklahoma Case No. CF-2022-1241.
- Petitioner's Exhibit 2: Plea of Guilty Summary of Facts, filed June 1, 2023 (certified copy) *State of Oklahoma v. Valerie Scarberry* In the District Court of Cleveland County, State of Oklahoma Case No. CF-2022-1241. Admittance objected to by Respondent. Objection withdrawn and Petitioner's Exhibit 2 admitted.
- Respondent's Exhibit 1: Letter from Mickey Joe Edward Richardson to Allan Grubb dated January 20, 2023. The postage stamp is dated January 23, 2023. Admittance objected to by Petitioner. Objection was withdrawn and Respondent's Exhibit 1 was admitted.
- Respondent's Exhibit 2: Petition for Protective Order filed September 21, 2021

Valerie June Scarberry v. Mickey J. Richardson In the District Court of Pottawatomie County, State of Oklahoma Case No. PO-2021-04-038.

- Respondent's Exhibit 3: Order of Protection filed November 4, 2021 (certified copy) *Valerie June Scarberry and J.T.S. v. Mickey J. Richardson* In the District Court of Pottawatomie County, State of Oklahoma Case No. PO-2021-244.
- Respondent's Exhibit 4: Shawnee Police Department Incident Report #2204469 In Pottawatomie County reported on October 31, 2022 against Suspect Mickey J. Richardson and Victim Valerie June Scarberry.
- Respondent's Exhibit 9: Little Axe Health Center Letter from Ms. Scarberry's therapist, Marvin Smith, dated March 20, 2023. Admittance objected to by Petitioner. Objection overruled and Respondent's Exhibit 9 was admitted.
- Respondent's Exhibit 11: Little Axe Health Center Letter from Ms. Scarberry's therapist, Marvin Smith, dated March 25, 2023. Admittance objected to by Petitioner. Objection overruled and Respondent's Exhibit 11 was admitted.

The following witness was sworn in and testified: Valerie Scarberry.

The Parties gave opening statements and presented their cases, starting with the Petitioner. The Parties then gave closing statements.

Following closing arguments by the Parties the Board entered into executive session to engage in deliberations, in accordance with 25 O.S. § 307(B)(8) and 75 O.S. § 309(D).

The Board, having considered representation of counsel, testimony of the witnesses, exhibits admitted into evidence, and being fully apprised of the premises, makes the following findings of fact, conclusions of law and orders:

FINDINGS OF FACT

1. Petitioner is a state agency with jurisdictional authority to regulate Licensed Professional Counselors, pursuant to 59 O.S. §§ 1901, *et seq.*
2. Respondent is a Licensed Professional Counselor in the State of Oklahoma, holding License Number 5058, and was licensed on or about May 7, 2013.

3. On June 1, 2023, Respondent pled Guilty to one (1) count of Conspiracy to Possess Contraband in a Penal Institution in violation of 21 O.S. § 421(A)(1), Cleveland County case number CF-2022-1241.
4. Respondent was sentenced to a 2-year deferred sentence with 18 months supervised probation.
5. The offer of proof for the guilty plea (Petitioner's Exhibit 2) states that Respondent stipulated to the state's Information filed (Petitioner's Exhibit 1) stating that "on or about the 27th day of June 2022, conjointly with Mickey Joe Edward Richardson by conspiring and agreeing to commit the crime of Conspiracy to Possess Contraband in a Penal Institution, a felony, [Respondent] did obtain \$1000.00 for Mickey Joe Edward Richardson to purchase a contraband cell phone, contrary to the form of the Statutes in such cases made and provided against the peace and dignity of the State of Oklahoma."
6. The Respondent worked as the mental health coordinator at Cimarron Prison in Cushing, Oklahoma from July 2017 to August 2018. During that time, Mickey Joe Edward Richardson was incarcerated in Cimarron Prison. Respondent interacted with Mickey Joe Edward Richardson daily at the prison while he remained on her caseload.
7. The Respondent's conduct violated the Oklahoma Licensed Professional Counselors Act, and the applicable Oklahoma Administrative Rules.

CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. § 1905(B)(4) of the Licensed Professional Counselors Act.
2. The Board may deny, revoke, suspend, or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act to a licensed professional counselor, if the person has engaged in unprofessional conduct as defined by the rules established by the Board, 59 O.S. § 1912(A)(4).
3. Any person determined by the Board to have violated any provision of the LPC Act or any Rule related to licensed professional counseling, may be subject to an administrative penalty, not to exceed \$10,000 for any related series of violations, pursuant to 50 O.S. § 1913.1 and OAC 86:10-29-14.
4. The Board found that the Petitioner has proven by clear and convincing evidence that the Respondent is guilty of each of the violations described in the Complaint, as follows:
 - a. Respondent's Pleas of Guilty to one (1) count of Conspiracy to Possess Contraband in a Penal Institution shows that the Respondent violated OAC 86:10-3-4, which provides that it is unprofessional conduct for an LPC to plead guilty to a felony crime if the violation substantially relates to practice of counseling and poses a reasonable threat to public safety.

- b. Respondent's Plea of Guilty to one (1) count of Conspiracy to Possess Contraband in a Penal Institution shows that Respondent engaged in unprofessional conduct as defined by the rules established by the Board in violation of 59 O.S. § 1912(A)(4).

ORDER

IT IS THEREFORE ORDERED by the State Board of Behavioral Health Licensure as follows:

1. The Professional Counselor license of Valerie Scarberry, license no. 5058 is hereby REVOKED.
2. An Administrative Fine of Two Thousand Dollars (\$2,000) is hereby assessed.

This Order is subject to review and approval by the Oklahoma Attorney General, pursuant to Executive Order 2015-33, and this Order shall become final upon completion of the review by the Oklahoma Attorney General unless disapproved, in which case this Order shall be null and void.

Dates this 25 day of January, 2024.


Dr. Kelly Collins, Board Chair
State Board of Behavioral Health Licensure

Certificate of Service

This is to certify that on the 25th day of January, 2024, the foregoing instrument was transmitted as indicated, postage prepaid, to the following:

U.S. First Class Mail

Valerie Scarberry
4009 Pine Ridge Rd.
Shawnee, OK 74804
Respondent

U.S. Certified Mail return receipt requested

Allan Grubb
231 N Broadway Ave.
Shawnee, OK 74801
Attorney for Respondent



Eric Ashmore, Executive Director

SENDER: COMPLETE THIS SECTION

- Complete items 1, 2, and 3. Also complete item 4 if Restricted Delivery is desired.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

1. Article Addressed to:

Allan Grubb
231 N. Broadway Ave.
Shawnee, OK 74801

2. Article Number
(Transfer from serv

7015 1660 0000 2967 6952

PS Form 3811, July 2013

Domestic Return Receipt

COMPLETE THIS SECTION ON DELIVERY

A. Signature

X

☐ Agent

☐ Addressee

B. Received by (Printed Name)

C. Date of Delivery

D. Is delivery address different from item 1? ☐ Yes

If YES, enter delivery address below: ☐ No

3. Service Type

☐ Certified Mail®

☐ Priority Mail Express™

☐ Registered

☐ Return Receipt for Merchandise

☐ Insured Mail

☐ Collect on Delivery

4. Restricted Delivery? (Extra Fee)

☐ Yes

PLACE STICKER AT TOP OF ENVELOPE TO THE RIGHT
OF THE RETURN ADDRESS. FOLD AT DOTTED LINE

CERTIFIED MAIL®



7015 1660 0000 2967 6952

7015 1660 0000 2967 6952

U.S. Postal Service™

CERTIFIED MAIL® RECEIPT

Domestic Mail Only

For delivery information, visit our website at www.usps.com®.

OFFICIAL USE

Certified Mail Fee

\$

Extra Services & Fees (check box, add fee as appropriate)

☐ Return Receipt (hardcopy) \$

☐ Return Receipt (electronic) \$

☐ Certified Mail Restricted Delivery \$

☐ Adult Signature Required \$

☐ Adult Signature Restricted Delivery \$

Postage

\$

Total Postage and Fees

\$

Sent To

Allan Grubb

Street and Apt. No., or PO Box No.

231 N. Broadway Ave

City, State, ZIP+4

Shawnee OK 74801

PS Form 3800, April 2015 PSN 7530-02-000-9047

See Reverse for Instructions

Postmark
Here

Barberry

SENDER: COMPLETE THIS SECTION

- Complete items 1, 2, and 3. Also complete item 4 if Restricted Delivery is desired.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

1. Article Addressed to:

Allan Grubb
231 N. Broadway Ave.
Shawnee, OK 74801

2. Article Number
(Transfer from serv

7015 1660 0000 2967 6952

COMPLETE THIS SECTION ON DELIVERY

A. Signature

X *[Signature]*

☐ Agent

☐ Addressee

B. Received by (Printed Name)

L. B. Biddulph

C. Date of Delivery

D. Is delivery address different from item 1? ☐ Yes
If YES, enter delivery address below: ☐ No

3. Service Type

☐ Certified Mail®

☐ Priority Mail Express™

☐ Registered

☐ Return Receipt for Merchandise

☐ Insured Mail

☐ Collect on Delivery

4. Restricted Delivery? (Extra Fee)

☐ Yes